

26STCV15880 26STCV15880

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Case Number: 26STCV15880 Hearing Date: September 15, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

15, 2026 TRIAL

DATE: Not set

CASE: Alyson Heimer v. United Parcel Service, Inc., et al.

CASE NO.: 26STCV15880

DEFENDANT

UNITED PARCEL SERVICE, INC.'S DEMURRER TO PLAINTIFF'S COMPLAINT

MOVING PARTY: Defendant

United Parcel Service, Inc.

RESPONDING PARTY: Plaintiff Alyson

Heimer

Plaintiff

Alyson Heimer ("Plaintiff") was employed by defendant United Parcel Service, Inc. ("UPS"), as a Ramp Operations Manager. Plaintiff alleges that UPS subjected her to discrimination, harassment, and retaliation by and through her supervisors, defendants Sussette Bryson ("Bryson"), Jason King ("King"), and Katherine Cabanillas ("Cabanillas").

I. BACKGROUND

On May 19, 2026, Plaintiff filed a Complaint against Defendants, UPS, Bryson, King, and Cabanillas, asserting causes of action for (1) Discrimination on the Bases of Disability & Association with a Disabled Person; (2) Hostile Work Environment Harassment on the Bases of Disability & Association with a Disabled Person; (3) Retaliation for Engaging in Protected Activity; (4) Failure to Provide Reasonable Accommodation; (5) Failure to Engage in Interactive Process; (6) Failure to Prevent Discrimination, Harassment, or Retaliation; and (7) Wrongful Termination of Employment in Violation of Public Policy.

On July 1, 2026, UPS filed a demurrer to the second causes of action.

On September 1, 2026, Plaintiff filed an opposition.

On September 8, 2026, UPS filed a reply.

II. LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. *¿* (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) *¿* When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. *¿* (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) *¿* “Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice.” *¿* (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.) *¿*

III DISCUSSION

UPS argues the second cause of action for harassment/hostile work environment fails because, as alleged, the supervisor defendants were performing personnel management duties and the allegations do not allege severe and pervasive conduct. The court agrees.

Government Code section 12940, subdivisions (a) and (j)(1)

provide the basis for FEHA claims for discrimination and harassment: "race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, or veteran or military status" A hostile work environment is a recognized form of harassment.

To establish a hostile work environment, harassment must be so severe or pervasive as to alter the conditions of the victim's employment and create an abusive working environment based on the protected characteristic. (See *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1043.) Harassment must be of a repeated, routine, or generalized nature when the harassing conduct is not severe. (See *Lyle v. Warner Bros. Television Productions* (2006) 38 Cal.4th 264, 283.) Harassment that is occasional, isolated or sporadic is insufficient. (See *id.*) "Whether an environment is hostile or abusive can be determined only by looking at all the circumstances. [Citation.] These may include the frequency of the discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee's work performance. The effect on the employee's psychological well being is, of course, relevant to determining whether the plaintiff actually found the environment abusive. But while psychological harm, like any other factor, may be taken into account, no single factor is required." (*Jones v. Dep't of Corr. & Rehab.* (2007) 152 Cal.App.4th 1367, 1378 [cleaned up].) "FEHA's prohibitions are not a 'civility code' and are not designed to rid the workplace of vulgarity." (*Sheffield v. Los Angeles Cnty. Dep't of Soc. Servs.* (2003) 109 Cal.App.4th 153, 161.)

Here, the Complaint alleges that (1) in 2019, Plaintiff disclosed to Office Administrator Bryson that Plaintiff had dyslexia and needed to go slower at certain tasks and use a notebook (Complaint, ¶ 14(a)); (2) on three occasions in 2021-2022, Plaintiff requested time off to assist her ailing father; on her return to work from the excused absence, management routinely assigned her extra work (*Id.*, ¶ 14(b)); (3) Plaintiff overheard Bryson at least one occasion make negative comments about Plaintiff and other employees who had used time off (*Id.*, ¶ 14(b)); (4) in 2023, despite knowing Plaintiff had dyslexia, Bryson recommended Plaintiff for a position requiring intensive number tracking, criticized Plaintiff for using disability-related coping methods to perform the work, and repeatedly said that a monkey could perform Plaintiff's position (*Id.*, ¶ 14(c)); in March 2023 and July 2023, upon returning to work after taking two medical leaves,

Plaintiff overheard Bryson make comments ridiculing Plaintiff for taking time off and insinuating she was not sick (Id., ¶ 14(d)); in mid to late 2023, Plaintiff disclosed to Bryson she needed to quickly eat during work to stabilize her blood sugar due to hypoglycemia episodes and was later told by Bryson that Plaintiff was taking too much time to eat (Id., ¶ 14(e)); in March 2024, District Manager Cabanillas informed Plaintiff while Plaintiff was on mental health disability leave that she had two weeks to return to work or she would be considered resigned (Id., ¶ 14(h)); in response, Plaintiff returned to work on March 28, 2024 then was placed on physical disability leave by Cabanillas after Plaintiff asked whether it was safe for her to handle certain heavy machinery due to her hypoglycemia (Id., ¶ 14(i), (j)).

These allegations describe conduct by Bryson which, although demeaning and offensive, were sporadic and did not alter the conditions of Plaintiff's employment. As to Cabanillas, the allegations describe purely personnel management decisions which are not actionable as harassment. (See *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55.) There are no allegations of King's conduct.

In opposition, Plaintiff cites *Roby v. McKesson Corp.* (2009) 47 Cal.4th 686 for the proposition that she may rely on supervisors' alleged discriminatory personnel management decisions as evidence of harassment. Plaintiff's reliance on *Roby* is misplaced. In *Roby*, an employee (*Roby*) sued her employer and her supervisor (*Schoener*) for harassment and related claims. (Id. at p. 697.) *Roby* generally alleged that she suffered from panic attacks and was terminated for reasons having to do with her disability. (Ibid.) The evidence at trial disclosed that "Schoener made negative comments in front of other workers about *Roby's* body odor, although *Schoener* knew from *Roby* that medication was causing the odor." (Id. at p. 695.) Moreover, "Schoener openly ostracized *Roby* in the office, refusing to respond to *Roby's* greetings and turning away when *Roby* tried to ask questions, and *Schoener* made a facial expression of disapproval when *Roby* took rest breaks because of her panic attacks." (Ibid.) The jury returned a verdict on *Roby's* claims, including her harassment claim. The Court of Appeal overturned the harassment verdict on the ground that the evidence was insufficient. Relying on *Reno v. Baird* (1998) 18 Cal.4th 640 and *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, the Court of Appeal reasoned that a plaintiff could not use personnel management actions as evidence to support a harassment claim. (Id. at pp. 700-701.) The

Supreme Court reversed. Explaining that “harassment focuses on situations in which the social environment of the workplace becomes intolerable because the harassment (whether verbal, physical, or visual) communicates an offensive message to the harassed employee,” the Court found that Schoener’s actions could not “fairly be characterized as an official employment action. None involved Schoener’s exercising the authority that [the employer] had delegated to her.... Rather, these were events that were unrelated to Schoener’s managerial role, engaged in for her own purposes.” (Roby, supra, at pp. 706, 709, emphasis in original.) In other words, Roby affirmed the principle first stated previously in Reno “that the exercise of personnel management authority properly delegated by an employer to a supervisory employee might result in discrimination, but not in harassment.” (Id. at p. 706, citing Reno, supra, at p. 646, emphasis in original.) Applied here, Plaintiff does not show that Bryson did not exercise personnel management authority that was not delegated by UPS to Bryson. The second cause of action is defective.

IV. CONCLUSION

The demurrer is SUSTAINED WITH LEAVE TO AMEND.

Plaintiff is ordered to serve and file her First Amended Complaint within 15 days of this order.

Moving party to give notice, unless waived.

Dated: September 15,
2026

Brock T. Hammond

Judge of the Superior Court